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Case Number: 24CHCV01380 Hearing Date: September 1, 2026 Dept: F43

Dept. F43

Hearing Date: 09-01-26

Case # 24CHCV01380, Villegas, et
al. v. FCA US, LLC

Trial Date: 10-05-26

MOTION FOR SUMMARY
JUDGMENT

MOVING PARTY: Defendant FCA US, LLC

RESPONDING PARTIES: Plaintiffs Juan Ibarra Villegas and Paloma
Roman Ibarra

RELIEF REQUESTED

Order granted defendant FCA US, LLC summary
judgment on the Complaint.

RULING: Motion for summary judgment is granted.

SUMMARY OF ACTION

On April 16, 2024, plaintiffs Juan Ibarra
Villegas and Paloma Roman Ibarra (Plaintiffs) filed this lemon law action

against defendant FCA US, LLC, asserting breach of express warranty under the Song-Beverly Act. Plaintiffs allege they purchased a 2017 Dodge Caravan for \$30,228.32 and entered a warranty contract with Defendant concerning the vehicle on August 1, 2018. (Compl. ¶ 16.) According to Plaintiffs, the vehicle began experiencing several mechanical defects, Defendant was unable to repair the defects, and Defendant failed to replace the vehicle or make restitution. Defendant filed and served an answer on May 24, 2024.

On June 5, 2026, Defendant filed the instant motion for summary judgment on the Complaint. Plaintiffs filed a late opposition on August 12, 2026.[1] Defendant filed a late reply on August 21, 2026.[2] Because Defendant did not raise the issue of prejudice, the court still considers all moving papers. (See Cal. Rules of Court, rule 3.1300(d); Kernan v. Regents (2022) 83 Cal.App.5th 675, 682, fn. 4 [no abuse of discretion if court accepts late papers if no prejudice suffered by opposing party].)

SUMMARY OF ARGUMENTS

Defendant FCA US, LLC (Defendant) contends Plaintiffs' express warranty claim fails because Defendant did not issue a manufacturer's new car warranty in connection with Plaintiffs' "used" vehicle purchase. (Mot. at p. 5:12-26 [citing Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189].) According to Defendant, it does not matter whether Plaintiff purchased the vehicle from an FCA-authorized dealership because no "new car warranty" was issued in with the sale.

In opposition, plaintiffs Juan Ibarra Villegas and Paloma Roman Ibarra (Plaintiffs) contend Defendant relies solely on the Retail Installment Sales Contract, stating the subject vehicle was "used" without providing the necessary evidentiary foundation for the contract's admissibility or addressing the applicable hearsay exception. According to Plaintiffs, Defendant improperly relies on the contract to come to several legal conclusions, including that no certified pre-owned vehicle warranty was issued with the vehicle purchase. (Opp. at p. 4:14-17.) Plaintiffs also claim a triable issue exists concerning whether the subject vehicle is certified pre-owned because Defendant has not established that no express certified pre-owned vehicle warranty accompanied the sale. Finally, Plaintiffs insist Rodriguez v. FCA US, LLC (2024) does not bar Song-Beverly claims arising from certified pre-owned warranties.

In response, Defendant asserts Plaintiffs' "certified pre-owned" warranty and Civil Code section 1795.5 argument is beyond the scope of the Complaint's allegations. (Reply at p. 2:11-13.) Thus, the argument cannot defeat the summary judgment motion. Even still, the case law concerning "used" goods only applies if an additional certified pre-owned vehicle warranty was issued with the subject vehicle (transaction-specific). The evidence does not demonstrate this occurred. Finally, Plaintiffs provide and rely on part of an expert's answer to a question..

EVIDENTIARY OBJECTIONS

Plaintiffs object to Defendant's evidence: Declaration of Michael D.

Smith ¶¶ 2-3 and Exhibit A for lack of foundation, lack of personal knowledge, and inadmissible hearsay:

Overruled: 1.

Sustained: None.

Defendant objects to Plaintiffs' Declaration of Matias Leite and Exhibit A:

Overruled: 1, 2, 3.

Sustained: None.

ANALYSIS

A. Motion for Summary Judgment

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute."

(Aguilar v. Atl. Richfield Co.

(2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the

evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork." (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1041 [citation omitted].)

The pleadings frame the issues for motions "since it is those allegations to which the motion must respond." (Scolinos v. Kolts (1995) 37 Cal. App. 4th 635, 640-641, citation omitted; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-383; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) "On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established." (Code Civ. Proc., § 437c, subd. (p)(2).) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Id.)

Defendant moves for summary judgment on the Complaint's sole breach of express warranty cause of action.

B. First

Cause of Action: Breach of Express

Warranty under the Song-Beverly Act/Civil Code section 1793.2, subd. (d)

Plaintiffs cannot maintain an express warranty cause of action under the Song-Beverly Consumer Warranty Act because the evidence demonstrates the subject vehicle is a "used" vehicle, and the Complaint's allegations seek liability for a "new motor vehicle" rather than a "used" vehicle purchased with a certified pre-owned vehicle warranty.

1. The subject vehicle was "used" when Plaintiff purchased it.

The undisputed evidence demonstrates plaintiff Juan Carlos Ibarra Villegas purchased a 2017 Dodge Truck Grand Caravan on August 1, 2018, from the Rydell Chrysler Dodge Jeep Ram dealership in San Fernando, CA 91340. (Defendant's Undisputed Material Fact (UMF) No. 1; Declaration of Michael D. Smith, Exh. A [Retail Installment Sales Contract].) The Retail Installment Sales Contract (RISC) for the purchase indicates the vehicle was "used" when purchased. (Smith Decl., Exh. A at p. 1 [listing the same VIN as the Complaint].)

The RISC states the following concerning warranties from the seller:

WARRANTIES SELLER DISCLAIMS

If you do not get a written warranty, and the Seller does not enter into a service contract within 90 days from the date of this contract, the Seller makes no warranties, express or implied, on the vehicle, and there will be no implied warranties of merchantability or of fitness for a particular purpose.

This provision does not affect any warranties covering the vehicle that the vehicle manufacturer may provide. If the Seller has sold you a certified used vehicle, the warranty of merchantability is not disclaimed.

(Smith Decl., Exh. A at p. 4, ¶ 4.)

Based on this language, the dealership would not have provided a "new vehicle" warranty but that the manufacturer could issue a certified pre-owned warranty.

Defendant contends the "used" designation demonstrates Plaintiffs' Song-Beverly claim fails because Plaintiffs cannot demonstrate Defendant issued a "new car warranty" in connection with the vehicle purchase. (UMF No. 2.) In opposition, Plaintiff relies on now overruled objections, rather than opposing evidence, to demonstrate Defendant has not shown the subject vehicle was purchased. However, the unopposed RISC that Plaintiffs produced during discovery establishes the vehicle was "used" when purchased.

Thus, the only way for Plaintiffs to qualify for Song-Beverly protections against Defendant manufacturer is if Defendant issued a new certified pre-owned (CPO) warranty with the vehicle purchase.

2. Plaintiffs

cannot demonstrate the subject vehicle was certified pre-owned at the time of the purchase.

The Song-Beverly Consumer Warranty Act is a remedial statute that protects consumers who purchase products covered by express warranties by regulating warranty terms and imposing service and repair obligations on parties who issue warranties.

(Rodriguez v. FCA US, LLC (2022) 77 Cal.App.5th 209, 217, aff'd 17 Cal.5th189 (2024) (Rodriguez I) [quoting Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 798].)

The Song-Beverly Act defines "consumer goods" as any "new product or part" that is bought, used, or leased for "use primarily for personal, family, or household purposes, except for clothing and consumable." (Civ. Code, § 1791, subd.

(a).) The Act's "refund-or-replace provision" requires manufacturers of goods to either replace the goods or reimburse the buyer the purchase price of the goods if "after a reasonable number of attempts the manufacturer is unable to conform the goods to the applicable express warranty." (Civ. Code, § 1791, subd. (d)(1).)

In Rodriguez v. FCA US, LLC (2024), the California Supreme Court clarified a circuit split regarding the Act's definition of "new motor vehicle" narrowing the scope of which vehicles qualified for the Act's "repair-or-replace" remedy. "[A] motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale." (Rodriguez v. FCA US, LLC (2024) 17 Cal.5th 189, 196 (Rodriguez II).)

But the Song-Beverly Act also provides protection for used goods but generally limits liability related to those protections to

retail sellers or distributors of the used product, distinguishing between distributors/retailers and manufacturers.

(See Civ. Code, § 1795.5.) A

“distributor” is an entity “that stands between the manufacturer [of consumer goods] and the retail seller in purchases, consignments, or contracts for sale of consumer goods.” (Com. Code, § 1791, subd. (e).) The Act provides express and implied warranty protections for used goods only where the entity selling the used product issues an express warranty at the time of sale. (Civ. Code, §§ 1795.5, subd. (a).) “It shall be the obligation of the distributor or retail seller making express warranties with respect to used consumer goods (and not the original manufacturer, distributor, or retail seller making express warranties with respect to such goods when new) to maintain sufficient service and repair facilities within this state to carry out the terms of such express warranties.”

(Civ. Code, § 1795.5, subd. (a).)

However, when a manufacturer sells directly to the public, such as issuing a new warranty with the sale of a used good, the manufacturer takes on the role of a retailer.

(Nunez v. FCA US LLC (2021) 61 Cal.App.5th 385, 398; Kiluk v.

Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 340 [Nothing about the text of section 1795.5 suggests that where a manufacturer acts in the capacity of a retailer, it is exempt from the Song-Beverly Act.”]; see also Civ. Code, § 1791, subd. (l)

[“‘Retail seller,’ ‘seller,’ or ‘retailer’ means any individual, partnership, corporation, association, or other legal relationship that engages in the business of selling or leasing consumer goods to retail buyers”].) Rodriguez II does not disturb Kiluk’s holding or the retailer-manufacturer theory.

The California Supreme Court reiterated that “for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (Rodriguez II, *supra*, 17 Cal.5th at p. 202 [citing Rodriguez I, *supra*, 77 Cal.App.5th at p. 218; Nunez, *supra*, 61 Cal.App.5th at p. 399; Kiluk, *supra*, 43 Cal.App.5th at pp. 339-340].)

Plaintiffs claim a triable dispute exists concerning whether the subject vehicle was sold as a certified pre-owned vehicle with an additional certified pre-owned (CPO) warranty.

Plaintiffs present testimony from Defendant’s personal most knowledgeable (PMK), Michael McDowell, taken from a January 17, 2025,

deposition. (Plaintiffs Additional
Material Facts (PAMF) No. 1; Declaration
of Matias Leite, Exh. A.) In reply,
Defendant presents additional testimony from the deposition.

Mr. McDowell testified that proof of a CPO warranty would
not be indicated on an RISC because Defendant does not require the dealerships
to indicate it on the RISC and that he had seen no evidence of a CPO warranty
even though “the Carfax shows CPO.” (PAMF
No. 1; Leite Decl., Exh. A at 55:12-19 [PMK Deposition Transcript].) Mr. McDowell asserted that “even though the
Carfax shows [the subject vehicle as] CPO,” he had seen no evidence that the
vehicle was actually sold “CPO”. (Id.,
Exh. A at 55:12-16, 56:3-6.) According
to Mr. McDowell, an “inspection sheet” would confirm whether a vehicle was CPO
and dealership repair orders would also reference a CPO. (Id., Exh. A at 55:22-56:3.) However, Mr. McDowell never saw
reference of
a “CPO” on repair orders for the subject vehicle and did not see that any CPO
inspection was performed on the subject vehicle. (Id., Exh. A at 55:24-56:6.) Mr. McDowell also stated that based on the
odometer reading at the time the vehicle was sold (36,978 miles on the RISC),
the owner would have received the remaining balance from the original basic
warranty “new motor vehicle warranty”: powertrain warranty for 5 years or
60,000 miles, the applicable emissions warranty, and the rust perforation
warranties. (Smith Decl., Exh. A at p.
1; Leite Decl., Exh. A at 56:18-25.)

Mr. McDowell’s testimony suggests that Plaintiffs did not
receive an additional CPO warranty with the purchase of the “used” vehicle
because the CPO designation and warranty information did not appear on
documents which Mr. McDowell states would have indicated the subject vehicle’s
CPO status: dealership inspection sheet and repair records. Neither party presents nor mentions a CPO
inspection or that any such documents exist.

Viewing the evidence in the light most favorable to
Plaintiffs, the court that Plaintiff cannot establish the subject vehicle was
purchased certified pre-owned. Although
Carfax shows the vehicle as CPO, the inspection sheet and repair documents
related to the subject vehicle do not reflect that the vehicle ever went
through a CPO inspection or that repairs occurred during any CPO warranty
period.

Thus, the court finds that Plaintiffs cannot maintain their Song-Beverly claim against Defendant.

Even if a triable dispute existed concerning the status of the subject vehicle, Plaintiff's "certified preowned" argument is beyond the scope of the allegations in Plaintiffs' Complaint. (Opp. at pp. 7:9-9:6.)

3.

Plaintiffs' "certified pre-owned" argument is beyond the scope of the Complaint's allegations.

"[T]he complaint delineates the scope of issues before a court on summary judgment." (*Comunidad en Accion v. Los Angeles City Council* (2013) 219 Cal.App.4th 1116, 1125.) "To create a triable issue of material fact, the opposition evidence must be directed to issues raised by the pleadings. If the opposing party's evidence would show some factual assertion, legal theory, defense or claim not yet pleaded, that party should seek leave to amend the pleadings before the hearing on the summary judgment motion." (*Distefano v. Forester* (2001) 85 Cal.App.4th 1249, 1264-1265.) The plaintiff cannot oppose a summary judgment motion using theories not alleged in the complaint. (*Feltham v. Universal Protection Service, LP* (2022) 76 Cal.App.5th 1062, 1073, citation omitted.)

The Complaint pleads a single breach of express warranty cause of action under the Song-Beverly Act. Plaintiffs allege the subject vehicle constitutes "consumer goods" under the Act and that the vehicle constitutes a "new motor vehicle." (Compl. ¶¶ 10, 13.) Plaintiffs allege they purchased the subject vehicle and entered into a written warranty contract with Defendant on August 1, 2018. (Id. ¶ 16.) Plaintiffs describe the warranty as including "a Basic Warranty that included bumper-to-bumper coverage for defects in materials and workmanship for the earlier of 36 Months (3 Years) or 36000 miles, a Drivetrain/Powertrain Warranty that covered defects in materials and workmanship for the earlier of 60 Months (5 Years) or 60000, and an California Emissions Warranty that covered defects in materials and workmanship in emissions parts for the earlier of 7 years or 70,000 miles." (Compl. ¶ 8.) Based on this description, the written warranty Plaintiffs allege they received with the purchase was the remainder of a basic "new motor vehicle" warranty. Plaintiffs allege their cause of action pursuant to Civil Code sections 1790 et seq. (Id. ¶ 10.)

However, the opposition expands these allegations and legal theories.

Plaintiffs concede that the RISC identifies the subject vehicle as “used” but newly contends the evidence does not demonstrate that no CPO warranty was issued with the purchase and claim a triable dispute exists concerning the subject vehicle’s CPO status based on Mr. McDowell’s testimony. Plaintiffs then proceed to discuss “used” vehicle liability theories discussed in the Rodriguez II, Kiluk, and Nunez cases. (Opp. at pp. 7:9-9:6 [citing Code Civ. Proc., § 1795.5].)

But the Complaint is silent concerning whether the subject vehicle was purchased used or certified preowned, whether an additional certified preowned vehicle warranty was issued by Defendant at the time of the purchase, or allege liability pursuant to Civil Code section 1795.5 and the Kiluk and Rodriguez II cases. (Compl. ¶ 10.)

“Evidence offered on an unpleaded claim, theory, or defense is irrelevant because it is outside the scope of the pleadings” (Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 444.)

Because the newly raised facts and theory of liability were not pleaded in the Complaint and Plaintiffs never filed an amended complaint, including the new theory and allegations, the scope of summary judgment is whether the evidence establishes that the subject vehicle is a “new motor vehicle” under the Act, whether Defendant issued an express “new motor vehicle warranty” with Plaintiff’s purchase of the subject vehicle, whether defects and nonconformities arose during the express warranty, whether Defendant and its authorized repair facilities failed to conform the vehicle to the express warranty, and whether Defendant failed to replace the vehicle or make restitution.

Alternatively, Plaintiffs’ opposition does not request leave to file an amended complaint, and Plaintiffs have not filed a motion for leave to amend or presented the court with a proposed amended pleading.

The court should allow the plaintiff the opportunity to

file an amended complaint if it appears from the opposition that plaintiff can state a cause of action. (Bostrom v. County of San Bernardino (1995) 35 Cal.App.4th 1654, 1663.) However, the court may deny leave to amend where a party waits until summary judgment to seek the court's permission without explaining the reason for delay, without filing a motion to amend, and without proposing an amended pleading. (Champlin/GEI Wind Holdings, LLC v. Avery (2023) 92 Cal.App.5th 218, 225; Record v. Reason (1999) 73 Cal.App.4th 472, 487.) If the opposing party's evidence shows a factual assertion or legal theory "not yet pleaded," the opposing party "should seek leave to amend the pleadings before the hearing on the summary judgment motion." (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1253, emphasis added.) In denying leave to amend, the court may also consider unwarranted delay, and no abuse of discretion occurs when a proposed amendment is offered after long unexplained delay or where there is a lack of diligence. (Falcon v. Long Beach Genetics, Inc. (2014) 224 Cal.App.4th 1263, 1280.)

Considering plaintiff Juan Carlos Ibarra Villegas was the individual who signed the RISC for the subject vehicle, Mr. Villegas would have known whether the subject vehicle was CPO at the time of his purchase and whether a CPO warranty was issued by Defendant or an authorized agent during the purchase. Assuming *arguendo* that Mr. Villegas could not testify to this, the deposition on which Plaintiffs rely to create a triable dispute occurred on January 17, 2025, over 18 months ago. Plaintiffs would have known no later than January 17, 2025, that there was a potential CPO theory of liability and could have moved to amend their Complaint shortly thereafter if they believed they had a viable breach of express warranty claim pursuant to Section 1795.5. The court also notes the PMK deposition occurred after the California Supreme Court issued its ruling in *Rodriguez II* which reaffirmed *Kiluk*.

Accordingly, the court proceeds on the merits of the summary judgment motion because Plaintiffs failed to seek to amend their Complaint.

4. The undisputed facts demonstrate Plaintiff cannot establish breach of express warranty under the Song-Beverly Act.

To prevail on a breach of express warranty claim under the Song-Beverly Act, a buyer must prove four elements: "(1) the vehicle had a defect or nonconformity covered by a written warranty that substantially impaired the vehicle's use, value, or safety to a reasonable person in plaintiff's shoes (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer for repair (the presentation element); (3) the manufacturer or its authorized repair facility did not repair the defect after a reasonable number of repair attempts (the failure to repair element); and (4) the manufacturer did not promptly replace or repurchase the vehicle from the plaintiff (the failure to replace or repurchase element)." (Carver v. Volkswagen Group of America, Inc. (2024) 107 Cal.App.5th 864, 879, citations omitted.)

Based on the undisputed evidence, the Song-Beverly Act's express warranty provisions do not apply to the subject vehicle because Plaintiffs do not demonstrate that they were issued a "new motor vehicle" warranty with the purchase of the subject vehicle.

Therefore, the court grants defendant FCA US, LLC's motion for summary judgment on Plaintiffs' Complaint.

CONCLUSION and ORDER

Defendant FCA US, LLC's motion for summary judgment is granted.

Defendant to give notice.

[1] Oppositions to summary judgment motions must be filed and served no later than 20 days before the hearing date. (Code Civ. Proc., § 437c, subd. (b)(2).)

[2] Replies to summary judgment oppositions must be filed and served no later than 11 days before the hearing date. (Code Civ. Proc., § 437c, subd. (b)(4).)